

25STCV28822 25STCV28822

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-18

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Case Number: 25STCV28822 Hearing Date: August 18, 2026 Dept: 732

Andrew Nickerson v. Carrier X LLC, et al.

Tuesday, August 18, 2026

CASE NUMBER: 25STCV28822

OPPOSED

Defendants Carrier X

LLC, Free Conferencing Corporation, HD Carrier, LLC, Phoundry LLC,

Wide Voice LLC, and David Erickson's Motion for Protective Order

Facts:

This is an employment discrimination and retaliation action. The Complaint alleges as follows. Plaintiff alleges he was terminated by Defendants from his position as Chief Executive Officer in retaliation for refusing to execute fraudulent transfers per Defendant Erickson's insistence. (Complaint, ¶ 19.)

Procedural History: Plaintiff

filed the Complaint on October 2, 2025, alleging six causes of action:

1.

Retaliation

2.

Breach of Fiduciary Duty

3.

Failure to Pay Wages

4.

Breach of Contract

5.

Wrongful Termination in Violation of Public Policy

6.

Accounting

Defendants filed the present motion for protective order on August 12, 2026.

Plaintiff filed an opposition on August 6, 2026. Defendants filed a reply on August 11, 2026.

Analysis

I.

MOTION

FOR PROTECTIVE ORDER

“Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. 2025.420, subd. (a).) “The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420, subd. (b).)

Defendants'

Motion seeks an order staying the deposition of Star Marcus, quashing the deposition notice of Star Marcus, and a protective order continuing the deposition to a future, mutually convenient date. According to both parties, the deposition in question took place July 16, 2026. The motion is therefore

moot. In the reply, Defendants request that the Court exercise its authority under Code of Civil Procedure section 2025.420 and issue a protective order precluding Plaintiff from using any testimony obtained during the July 16, 2026 deposition of Star Marcus in connection with any motion, hearing, arbitration, mediation, trial, or other proceeding in this action. The Court declines that request without a specific showing that Plaintiffs obtained information to which they were not entitled under the discovery statutes.

Sanctions

Moving

party Defendants request \$3,950 in legal fees to file this motion, which was filed on August 4, 2026, more than two weeks after the deposition took place. This request lacks substantial justification, as the motion was moot when it was filed.

Superior Court of California

County of Los Angeles

Department 732

ANDREW NICKERSON,

Plaintiff

v.

CARRIER X LLC, et al.,

Defendants.

Case No.:

25STCV28822

Hearing Date: August 18, 2026

[TENTATIVE] RULING RE:

Defendants'

Motion for Protective Order

Defendants Motion for Protective
Order is DENIED. No sanctions are awarded.

Defendants to give notice.

Dated: August 18, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court